Policy

Sanctions Management

Purpose

The purpose of this Policy is to establish a clear, consistent and fair framework for managing non-compliance with the requirements of the Quality and Safety Pharmacy Program (QSPP).

This Policy aims to:

- Protect the integrity, credibility and reputation of QSPP
- Safeguard patient safety and public confidence
- Promote continuous quality improvement by participating pharmacies
- Ensure sanctions are applied proportionately, consistently and transparently
- Embed procedural fairness (natural justice) in all compliance and enforcement actions.

Context

This Policy applies to:

- All pharmacies participating in QSPP
- All alleged or identified non-compliance with QSPP Program Rules, Standards, User Assessment Guide, Terms and Conditions, or applicable legislation.
- Any occasion where QSPP may consider or is considering imposing a form of sanction.

Guiding Principles

All sanctions and enforcement actions under QSPP will be guided by the following principles:

Procedural Fairness (Natural Justice)

QSPP will ensure that:

- Pharmacy owner/s are clearly informed of alleged non-compliance
- Relevant evidence is disclosed, subject to confidentiality obligations
- Pharmacy owner/s are given a reasonable opportunity to respond
- Decisions are made by an impartial and appropriately authorised decision-maker
- Decisions are documented with clear reasons
- Appealable decisions are subject to independent review.

Proportionality

Sanctions will be proportionate to:

- The seriousness of the non-compliance
- The level of risk to patient safety
- Whether the issue is isolated or systemic
- The pharmacy's compliance history.

Consistency

Comparable non-compliance will be managed in a consistent manner across the Program.

Transparency

The sanctions framework, processes and potential consequences will be clearly documented and publicly available where appropriate.

Patient Safety First

Where patient safety is at risk, QSPP may take immediate action, including interim measures, while still ensuring procedural fairness as soon as practicable.

Classification of Non-Compliance

Non-compliance may be categorised for the purposes of determining appropriate enforcement action:

Level 1 – Minor Non-Compliance

- Minor administrative or documentation deficiencies
- No direct or immediate patient safety risk
- No legal or statutory compliance risk
- Generally, a first occurrence.

Level 2 – Moderate Non-Compliance

- Failure to meet core QSPP requirements
- Repeated minor non-compliance
- Minor (civil) legal or statutory compliance risk
- Potential risk to patient safety.

Level 3 – Serious Non-Compliance

- Significant breach of core standards or requirements
- Evidence of systemic failure
- Actual or high risk to patient safety
- Moderate (criminal or civil) legal or statutory compliance risk
- Repeated moderate non-compliance.

Level 4 – Critical Breach

- Fraudulent or misleading representation of accreditation
- Deliberate falsification of records
- Refusal to participate in audits or investigations
- Immediate and serious risk to patient safety
- Significant (criminal) legal or statutory compliance risk
- Persistent non-compliance following prior sanctions.

Sanctions and Enforcement Framework

QSPP applies a hierarchical and escalating sanctions model. The sanction imposed will depend on the severity, recurrence, and response to prior enforcement actions.

Stage 1 – Advisory Notice

Applies to:
- Level 1 non-compliance

Action may include:
- Written notice outlining the identified deficiency
- Required corrective action
- A specified timeframe for remediation

Stage 2 – Formal Improvement Notice

Applies to:
- Failure to remediate Stage 1 issues
- Level 2 non-compliance

Action may include:
- Formal written notice of non-compliance
- Requirement for a documented corrective action plan
- Defined remediation timeframe
- Follow-up or targeted assessment

Stage 3 – Provisional Accreditation

Applies to:
- Persistent Level 2 non-compliance
- Level 3 non-compliance
- Failure to comply with a Formal Improvement Notice.

Action may include:
- Full or partial on-site assessment
- Mandatory remedial actions
- Increased audit or monitoring
- Public indication of conditional status where appropriate
- Notification to relevant regulatory or oversight bodies where required

Stage 4 – Revocation of Accreditation

Applies to:
- Serious or critical non-compliance
- Failure to comply with conditional requirements
- Identified patient safety concerns
- Critical breaches
- Fraud, dishonesty or deliberate misconduct
- Repeated or unremedied non-compliance

Action may include:
- Termination of QSPP accreditation
- Removal from the QSPP register
- Notification to relevant regulatory or oversight bodies where required
- Mandatory corrective action prior to reinstatement
- Possible exclusion period from program

Urgent Action Provision:

Where QSPP reasonably believes there is an immediate risk to patient safety, revocation of accreditation may be imposed without prior notice. The pharmacy will be provided with an opportunity to respond as soon as practicable following the action.

Decision-Making and Governance

To ensure independence and rigour:

- **Stage 1** decisions are made by the Program Manager, in consultation with the Head of Safety and Quality, if applicable
- **Stage 2** decisions are made by the Head of Safety and Quality, in consultation with the Chair of Impartiality Sub-Committee, if applicable
- **Stage 3** decisions are made by the Impartiality Sub-Committee
- **Stage 4** decisions are made by the Clinical Governance Committee on recommendation from the Impartiality Sub-Committee

Appeals

A pharmacy subject to Revocation may lodge an appeal in accordance with QSPP Rules and Procedural Fairness and Impartiality Policy.

Appeals must:

- Be lodged within the specified timeframe

The outcome may affirm, vary, set aside, or remit the decision for reconsideration.

Aggravating and Mitigating Factors

In determining sanctions, QSPP may consider:

Aggravating factors:

- Repeated or systemic breaches
- Deliberate or reckless conduct
- Failure to cooperate
- Concealment or misrepresentation

Mitigating factors:

- Early admission and cooperation
- Prompt corrective action
- Isolated incidents
- Strong compliance history
- Exceptional external circumstances

Records and Confidentiality

- All enforcement decisions will be documented with reasons
- Records will be securely maintained
- Publication or disclosure will be limited to what QSPP considers is necessary to ensure transparency, regulatory compliance, and patient safety

Continuous Improvement

Sanctions under this Policy are intended to support improvement, not punishment. Enforcement action is a measure of last resort where engagement, remediation and support have failed.

Related documentation

Exceptional Circumstances Policy
Privacy Policy
Procedural Fairness and Impartiality Policy
QSPP Program Rules
QSPP Terms and Conditions